

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

TANISHA ROSADO

Plaintiff,

against

THE CITY OF NEW YORK, THE CITY OF NEW YORK
POLICE DEPARTMENT, POLICE OFFICER PRONAB
ADHIKARY AND POLICE OFFICER "JOHN
DOE" INDIVIDUALLY, AND IN THEIR CAPACITY AS
MEMBERS OF THE NEW YORK CITY POLICE
DEPARTMENT

Defendants.

To the above-named Defendants:

You are hereby summoned to answer the complaint in this action at the Supreme Court of the State of New York, County of Bronx at the Office of said Court located at 851 Grand Concourse, Bronx, NY 10451, within the time provided below and to file your answer to the annexed complaint with the Clerk and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the plaintiff's attorneys within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the

Plaintiff designates.
BRONX COUNTY
as place of trial.

Basis of Venue
Plaintiff resides

SUMMONS
Index No.

complaint.

DATED: Bronx, New York
October 13, 2024

DOYLE & BROUMAND, LLP

Michael B. Doyle, Esq.

Attorney for Plaintiff

3154 Albany Crescent, Third Floor

Bronx, New York 10463

(718) 796-2210

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

TANISHA ROSADO

Plaintiff,

against

Index No.

**VERIFIED
COMPLAINT**

THE CITY OF NEW YORK, THE CITY OF NEW YORK
POLICE DEPARTMENT, POLICE OFFICER PRONAB
ADHIKARY AND POLICE OFFICER "JOHN
DOE" INDIVIDUALLY, AND IN THEIR CAPACITY AS
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Defendants.

PLEASE TAKE NOTICE, that plaintiff complains of the defendants upon
information and belief as follows:

1. Plaintiff at all times mentioned was and is a resident of Bronx County, City
and State of New York.
2. Defendant at all times hereinafter mentioned, The City of New York, is a
Municipality existing pursuant to the laws of the City and State of New
York, with offices located at 100 Church Street, New York, New York
10007 (hereinafter "the City").
3. Defendant at all times hereinafter mentioned, The City of New York Police
Department, is a public authority existing pursuant to the laws of the City

and State of New York, with offices at 1 Centre Street, City of New York and State of New York.

4. Defendant, Police Officer Pronab Adhikary, shield #24176 of the PBMS Specialized Units is an employee of the NYPD and wrongfully arrested, processed and continued to wrongfully prosecute the Plaintiff.
5. NYPD Officer "John Doe" intended to be the yet unnamed officer who aided Adhikary in the wrongful arrest of the Plaintiff and allowed for the wrongful arrest and continued to wrongful prosecution of the Plaintiff.
6. NY County ADA "Doe" intended to be the as yet unnamed assistant district attorney who decided to continue the damages to Plaintiff resulting from the wrongful arrest by maliciously prosecuting what was clearly a wrongful arrest with malicious motive, namely, to get the innocent Plaintiff to plead guilty or agree to an ACD (adjournment in contemplation of dismissal) in an attempt to prevent Plaintiff from being made whole by filing a Notice of claim and prosecuting this action.
7. On or about March 10, 2024, the Plaintiff served a Notice of Claim electronically upon The City Of New York.
8. The City Of New York acknowledged receipt of the Notice of Claim electronically dated July 17, 2024.

9. At least thirty (30) days have elapsed since the service of the Notice of Claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one (1) year and ninety (90) days after the happening of the event upon which the claims are based.
10. Defendant has waived any request for a 50-H hearing.
11. At all times mentioned hereinafter, the defendants including The City Of New York, its agents, servants, and employees operated, maintained and controlled the New York City Police Department hereinafter referred to as “NYPD”, including all the police officers and employees thereof.
12. New York City Police Officers who were involved in the arrest of the plaintiff, named herein as Police Officer Pronab Adhikary and Police Officer “John Doe” individually, and in their capacity as Members Of The New York City Police Department and at all times herein were acting in such capacity as the agents, servants, and/or employees of The City Of New York within the scope of their employment and under the direction of The City Of New York and the NYPD.
13. At all times hereinafter mentioned and specifically on or about March 10, 2024 at or near the location of the entrance to the Lincoln Tunnel New Jersey bound in Midtown South Precinct, New York, New York, (hereinafter

“location of incident”), the defendants, individually and collectively were acting within the scope of their employment and under the direction of The City Of New York and the NYPD as their agents, servants, and/or employees.

14. The City Of New York is liable under the doctrine of respondeat superior for the officers’ tortious actions.
15. On or about the date of incident and at all relevant times hereunder, the defendants New York City Police Officers who were involved in the arrest of the plaintiff, named herein as Police Officer Pronab Adhikary and Police Officer “John Doe” acted as police officers and were required to follow the rules and regulations as contained in the NYPD Patrol Guidelines.
16. On or about the date of incident New York City police officers who were involved in the arrest of the plaintiff, named herein as Police Officer Pronab Adhikary and Police Officer “John Doe” Individually, were present at the location of incident.
17. Plaintiff was not guilty of breaking any laws, but the defendants refused to review, follow legal and proper procedures and listen to Plaintiff who was with her infant children, but was wrongfully detained and arrested, placed in handcuffs and removed to be held in prison, imprisoned and locked up until released.

18.The Plaintiff was criminally processed and fingerprinted and held until her release.

19.The Plaintiff was innocent of all charges and had committed no crime.

20.ADA "Doe" assigned to the case knew or should have that Plaintiff was falsely arrested but insisted prosecuting the case unless Plaintiff agreed to an ACD.

21.The ADA's duty is acting independently and for the "interests" of justice and defendants for the just and fair administration of justice, instead violated Plaintiff and her rights by using the hammer of the case remaining open, to try to put plaintiff in a position where she could not make this valid claim for damages, and to that end maliciously prosecuted that case, knowing there was never a crime and continued it by adjourning it multiple times until the case was finally dismissed.

AS AND FOR A FIRST CAUSE OF ACTION FOR FALSE ARREST

AS TO DEFENDANTS

22 The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked "1" through "21" with the same force and effect as it more fully and at length set forth herein.

- 23 That beginning on or about the date of incident at or near the location of incident, the defendants, and their agents, servants, and/or employees arrested the plaintiff.
- 24 That said arrest was caused by the negligence of the defendants, their agents, servants, and/or employees, without any reasonable grounds, or cause to believe that the plaintiff was guilty of any crimes, or that the defendants had just cause to arrest the plaintiff.
- 25 The plaintiff was innocent of any crime and did not contribute in any way or manner to her arrest by the defendants, their agents, servants, and/or employees and was forced to submit to the aforesaid arrest entirely against her will.
- 26 That the defendants, their agents, servants, and/or employees, as set forth above, intended to arrest and confine the plaintiff; the plaintiff was conscious of the arrest and confinement; the plaintiff did not consent to the arrest or confinement; and the arrest and subsequent confinement were not otherwise privileged.
- 27 That by reason of the aforesaid false arrest and detention of the plaintiff, she was imprisoned and subjected to great indignity, humiliation, pain and great distress of mind and body, enhanced by the presence of her infant children.

28 That by reason of the aforesaid, the plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

**AS AND FOR A SECOND CAUSE OF ACTION FOR MALICIOUS
PROSECUTION**

29 The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked “1” through “28” with the same force and effect as if more fully and at length set forth herein.

30 ADA Doe received the file and reviewed it before the case was called and, upon information and belief, knew it was a “bad” arrest and the Plaintiff was not guilty of anything.

31 Rather than discharge the duty of an ADA to use the highest ethical standards and to not just act as an agent for the City and NYPD, the ADA attempted, wrongly, to try to get the Plaintiff to waive her rights to sue for the false arrest and imprisonment by doing what has been a ploy with ADAs in the City forever, namely, knowing the people, like Plaintiff, just want to be done with the horror of a false arrest and the ongoing threat of prosecution, offers to ACD the case, which is NOT a dismissal and would be a bar to bringing an action.

32 These actions have damaged Plaintiff in an amount to be determined by this action but believed to exceed the jurisdictional minimum to bring this case in Supreme Court.

**AS AND FOR AN THIRD CAUSE OF ACTION FOR INTENTIONAL
INFLICTION OF EMOTIONAL DISTRESS**

33 The plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked "1" through "33" with the same force and effect as if more fully and at length set forth herein.

34 The defendants The City Of New York and New York City Police Officers who were involved in the arrest of the plaintiff, named herein as Police Officer "Pronab Adhikary" and Police Officer "John Doe" Individually acting in the scope of their employment acted in a manner that exceeded all reasonable bounds of decency with an intent to inflict emotional distress upon the plaintiff.

35 The plaintiff sustained emotional distress as a result of the defendant officers' conduct and The City Of New York under the doctrine of respondeat superior.

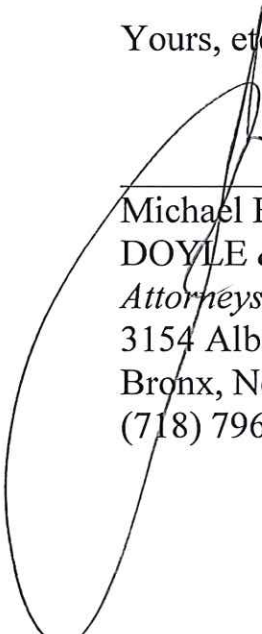
36 By reason of the aforesaid, the plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

37 This action falls within one or more of the exceptions to the limitation of joint and several liability included in Article 16 of the CPLR.

WHEREFORE, the Plaintiff demands judgment against the Defendants in an amount having a present value which exceeds the jurisdictional limit of all lower courts which would otherwise have jurisdiction of this matter, together with interest, costs and disbursements, plus attorney's fees and such other relief as the court deems just and proper.

DATED: BRONX, NEW YORK
October 13, 2014

Yours, etc.



Michael B. Doyle, Esq.
DOYLE & BROUMAND, LLP
Attorneys for Plaintiff
3154 Albany Crescent, Third Floor
Bronx, New York 10463
(718) 796-2210

INDIVIDUAL VERIFICATION

STATE OF NEW YORK
COUNTY OF BRONX }

§§.4

The undersigned being duly sworn deposes and states the following:

I am the Plaintiff in the within action, I have read the foregoing Summons and Verified Complaint and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters I believe it to be true.

Tanisha Rosado
TANISHA ROSADO

Duly Sworn to Before Me, This
4 day of Nov, 2024

Notary Public

MICHAEL A. DOYLE
NOTARY PUBLIC-STATE OF NEW YORK
No. 02706091835
Qualified in Rockland County
My Commission Expires May 05, 2025

SUPREME COURT OF THE STATE OF NEW YORK
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TANISHA ROSADO

Plaintiff,

against

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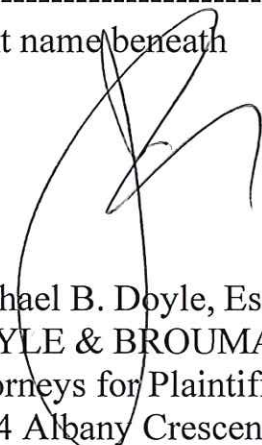
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Defendants.

SUMMONS AND VERIFIED COMPLAINT

Signature (Rule 130-1.1-a)

Print name beneath



Michael B. Doyle, Esq.
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